

FIELD MANUAL: TACTICAL EMPATHY

NEVER SPLIT THE DIFFERENCE

Negotiating As If Your Life Depended On It.

OPERATIVE: Chris Voss | Former FBI Lead International Kidnapping Negotiator.

CONTEXT: FIELD-TESTED
TETED APPROACHES FOR BUSINESS,
LIFE, AND HOSTAGE SITUATIONS.
PROCEED WITH OPEN MIND.

CONFIDENTIAL

THE COMPROMISE TRAP



THE OLD WAY:
COMPROMISE.



THE FBI WAY:
TACTICAL EMPATHY.

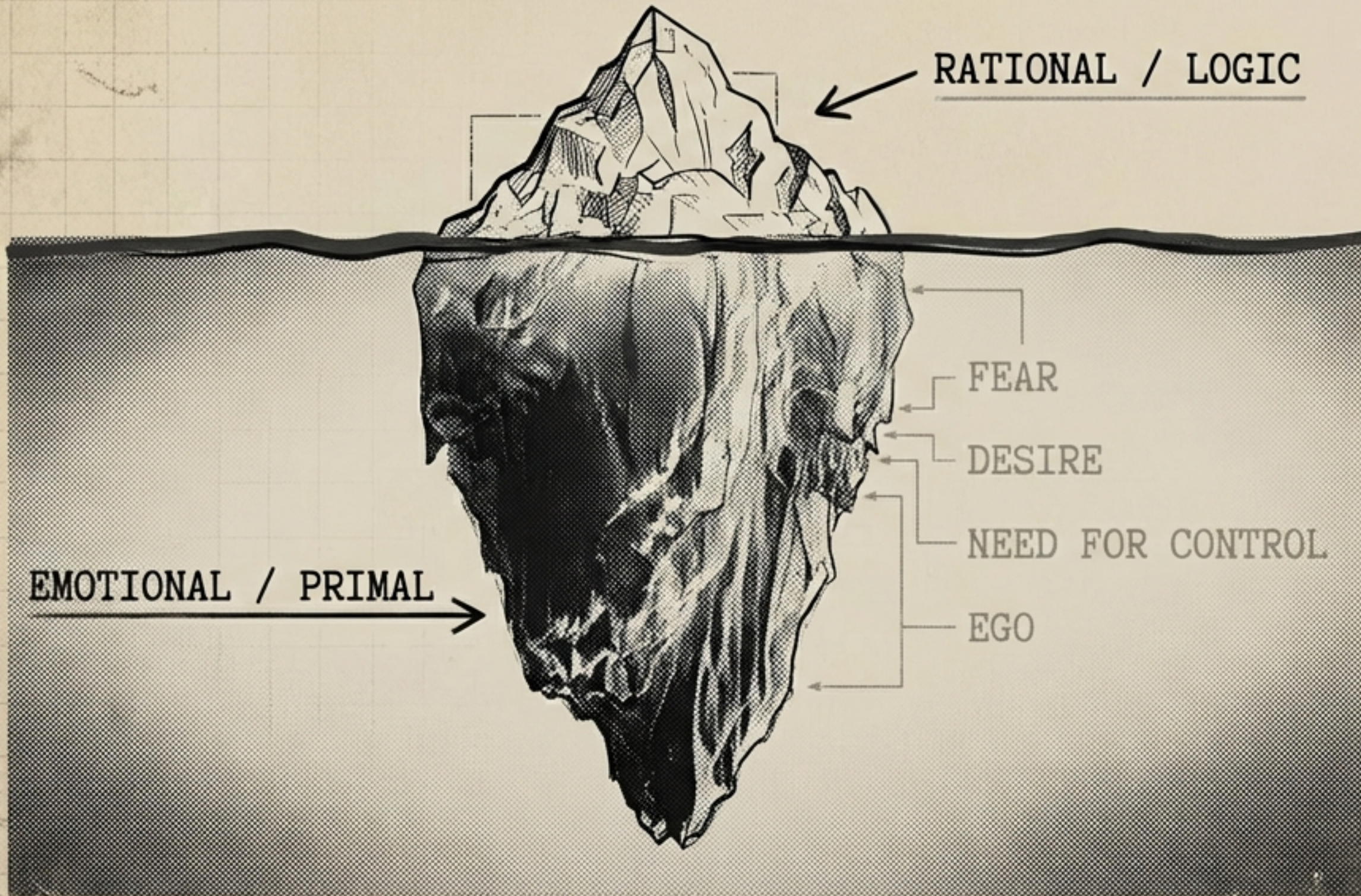
THE MYTH: 'Meeting halfway' is the goal.

THE REALITY: Compromise is driven by fear and avoidance.
It results in a bad deal where neither side is happy.

THE RULE: No deal is better than a bad deal. Don't split the difference.



NEGOTIATION IS PSYCHOLOGICAL, NOT INTELLECTUAL



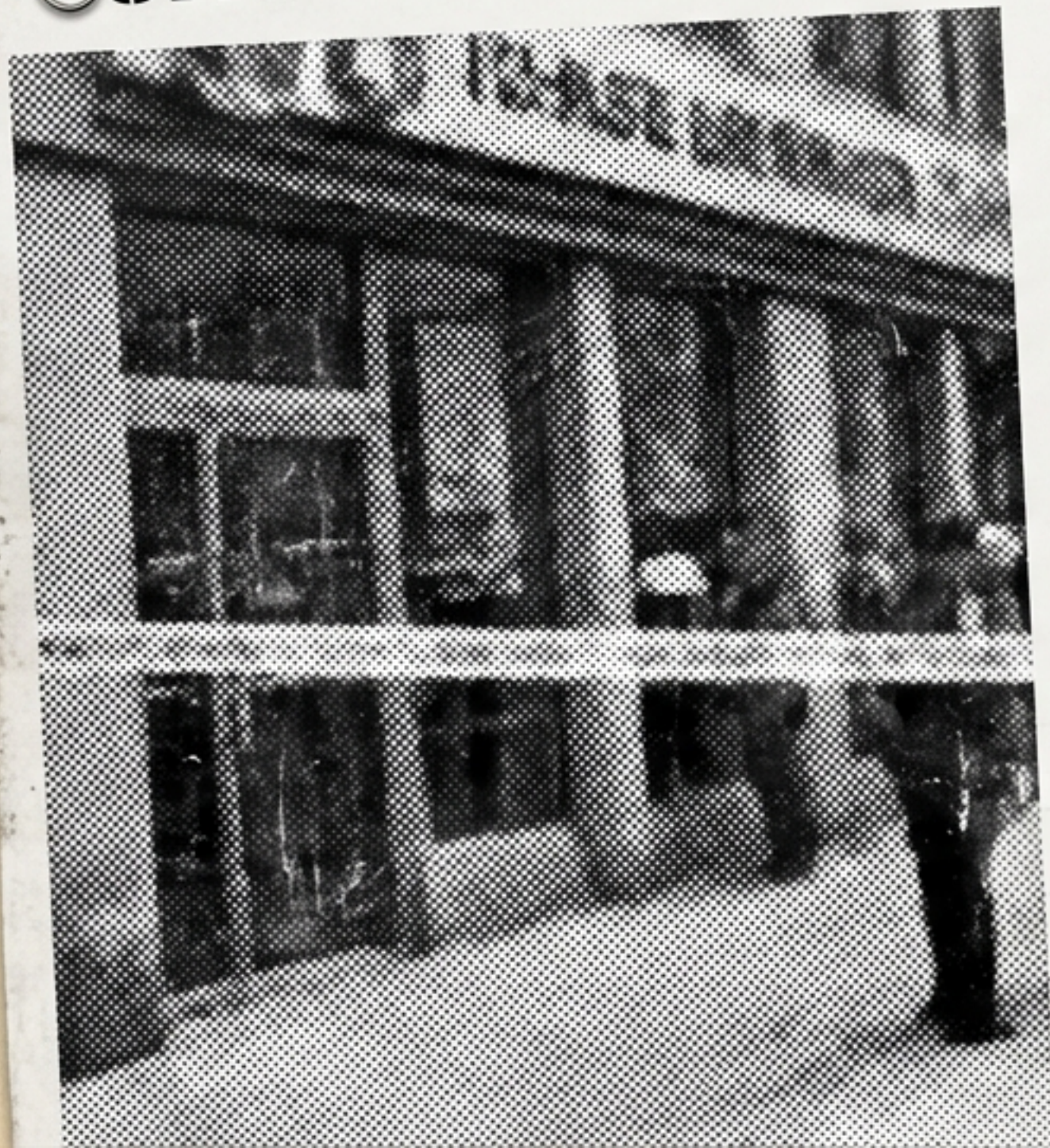
THE SHIFT: Traditional negotiation assumes rational actors. The FBI learned the hard way (Waco, 1993) that this fails.

KEY INSIGHT: People make decisions based on emotion and justify them with logic.



CASE FILE: 09-30-93

CASE: CHASE MANHATTAN BANK ROBBERY



SUBJECTS: 2 Robbers, 3 Hostages. [REDACTED]

PROBLEM: Lead hostage-taker (Watts) feeding misinformation, disguising voice, confusing FBI.

TACTIC: Chris Voss replaced the negotiator. Used a specific vocal tone to slow the situation down. No arguments. No demands.

OUTCOME: Siege ended. Zero injuries.

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TACTICAL EMPATHY

TOOL: THE VOICE



THE PLAYFUL

Default voice.
Smile while talking.



THE LATE-NIGHT FM DJ

Deep, soft, slow, reassuring.
Establishes authority
without aggression.



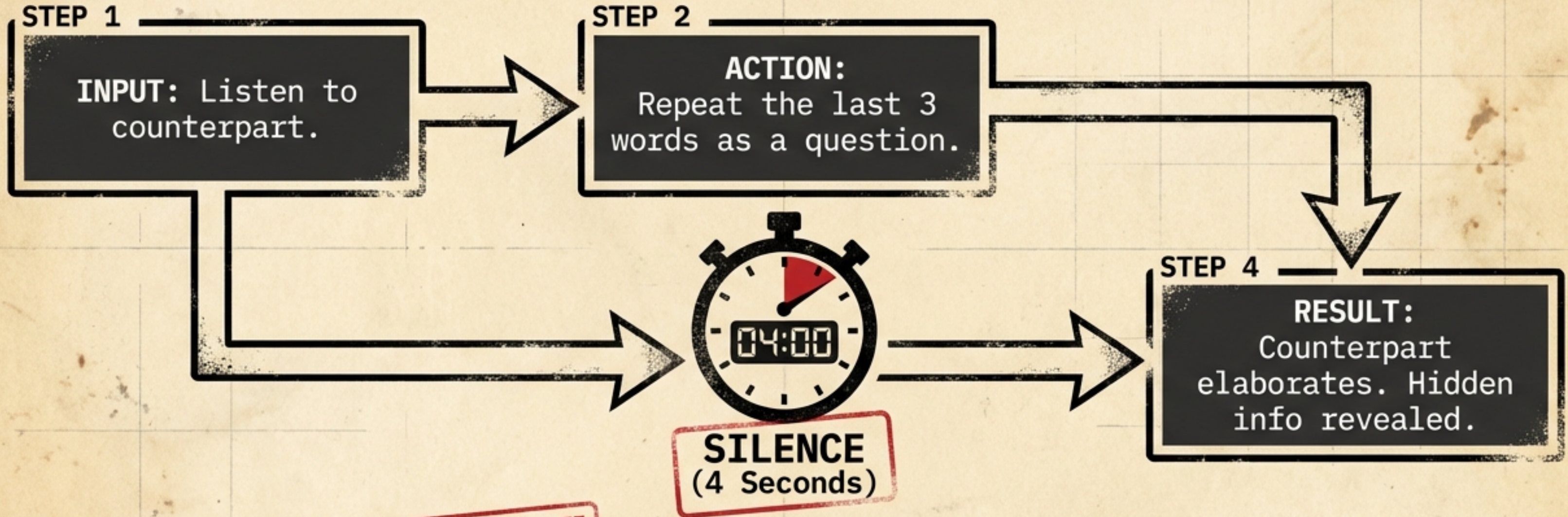
THE ASSERTIVE

Use rarely.
Triggers pushback.

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TOOL: MIRRORING

The Art of Insinuating Similarity



EXAMPLE

THEM: "We've had a really tough year."
YOU: "A tough year?"

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FIELD EXERCISE: TONE & MIRRORING

FIELD EXERCISE / DRILL SHEET

- [] **DRILL 1: THE VOICE.** Record yourself reading a paragraph. Record again while smiling. Compare the difference.
- [] **DRILL 2: THE MIRROR.** In your next conversation, repeat the last 3 words they say.
- [] **OBSERVATION LOG:** Did they repeat themselves? Did they expand? Did they feel heard?

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TACTICAL EMPATHY

TACTICAL EMPATHY IS NOT SYMPATHY



DEFINITION: The ability to recognize the perspective of a counterpart and vocalize that recognition.

THE GOAL: Make them feel "understood".

CRITICAL DISTINCTION: You do not need to agree with their values. You just need to acknowledge their state.

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TOOL: LABELING

Validating Emotions Without Agreeing.

**IT SEEMS
LIKE...**

IT SOUNDS LIKE...

**IT LOOKS
LIKE...**

- **THE MECHANIC:** Spot the emotion (fear, anger, hesitation) and give it a name.
- **THE RULE:** Never say "I understand." It sounds condescending.
- **THE EFFECT:** Labeling negatives diffuses them. Labeling positives reinforces them.

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CASE FILE: THE HARLEM FUGITIVES



SURVEILLANCE IMAGE: HARLEM HIGH-RISE //
TARGET: FLOOR 27 // DATE: REDACTED

SITUATION: 3 heavily armed fugitives barricaded. No clear shot.

TACTIC: 6 hours of Labeling through the door. No demands made.

QUOTES:

- "It looks like you don't want to come out."
- "It seems like you worry that if you open the door, we'll shoot."

OUTCOME: Surrender without violence. Fugitives stated: "You calmed us down."

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TOOL: THE ACCUSATION AUDIT

THE FEARS

- This is unfair
- He is strong-arming me
- He doesn't care
- You are just trying to manipulate me

CONCEPT: List every terrible thing they could say about you BEFORE they say it.

WHY IT WORKS: It takes the sting out. It forces the other side to defend you.

EXAMPLE: "I know this proposal seems unfair. It looks like I don't care about your constraints."

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NO IS PROTECTION



THE TRAP OF YES: "Yes" is often counterfeit. Used to make you go away.

THE POWER OF NO: "No" makes people feel safe and in control.

THE TACTIC: Trigger a "No" intentionally.

THE SWITCH:

- **BAD:** "Do you have a few minutes to talk?"
(Triggers defensiveness)
- **GOOD:** "Is now a bad time to talk?"
(Triggers "No" = Safety)

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THE TWO WORDS THAT TRANSFORM NEGOTIATION

"YOU'RE RIGHT"



DISMISSED

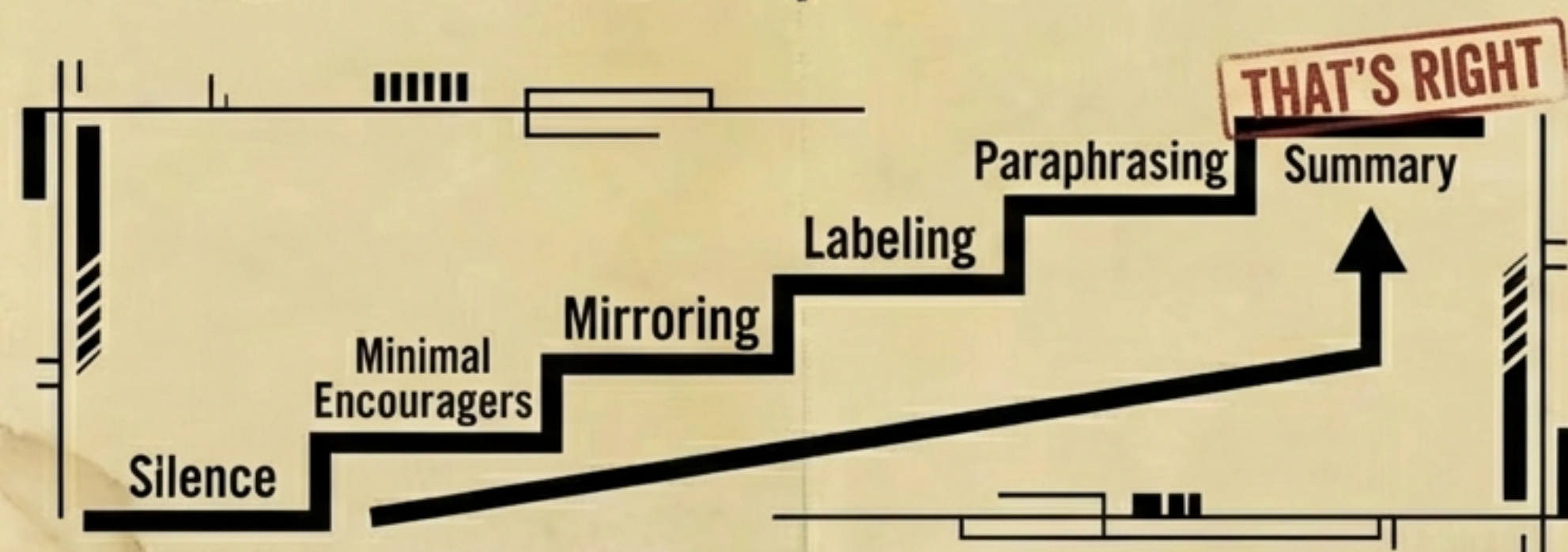
Used to get you to shut up.
Theoretical agreement only.

"THAT'S RIGHT"



UNLOCKED

The Breakthrough. They feel understood.
They own the conclusion.

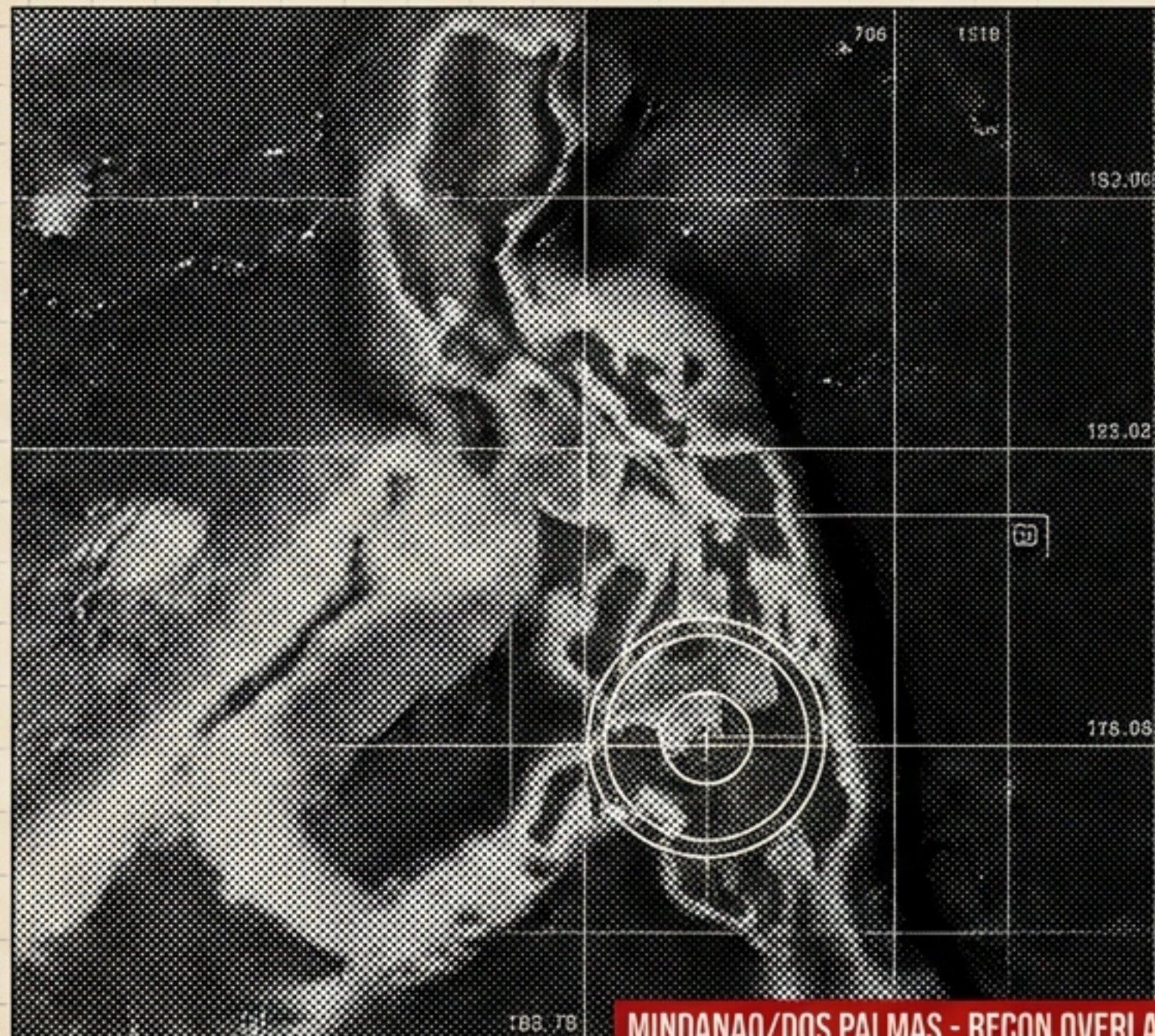


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CASE FILE: THE JUNGLE KIDNAPPING

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TOP SECRET
TOP SECRET



MINDANAO/DOS PALMAS - RECON OVERLAY

SUBJECT: Abu Sabaya (Terrorist).

VICTIM: Jeff Schilling.

DEMAND: \$10 Million. [REDACTED]

THE TACTIC: Negotiator summarized Sabaya's grievances (500 years of oppression, war damages).

✓ **THAT'S RIGHT**

THE TURN: Sabaya said "THAT'S RIGHT."

RESULT: Ransom for "War Damages" dropped immediately. [REDACTED] [REDACTED]

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TOOL: CALIBRATED QUESTIONS

DEMAND

QUESTION

THE CONCEPT: Suspend your ego. Stop giving orders. Ask open-ended questions that force them to think.

THE RULES:

- **AVOID:** "Why" (Sounds accusatory).
- **USE:** "What" and "How".
- **USE:** "What" and "How".

THE GOLDEN QUESTION:

"How am I supposed to do that?"

Effect: Forces the counterpart to solve YOUR problem.

and

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CASE FILE: THE DRUG DEALER



SITUATION: Dealer's girlfriend kidnapped by rival.

THE QUESTION: Instead of demanding proof of life, he asked:

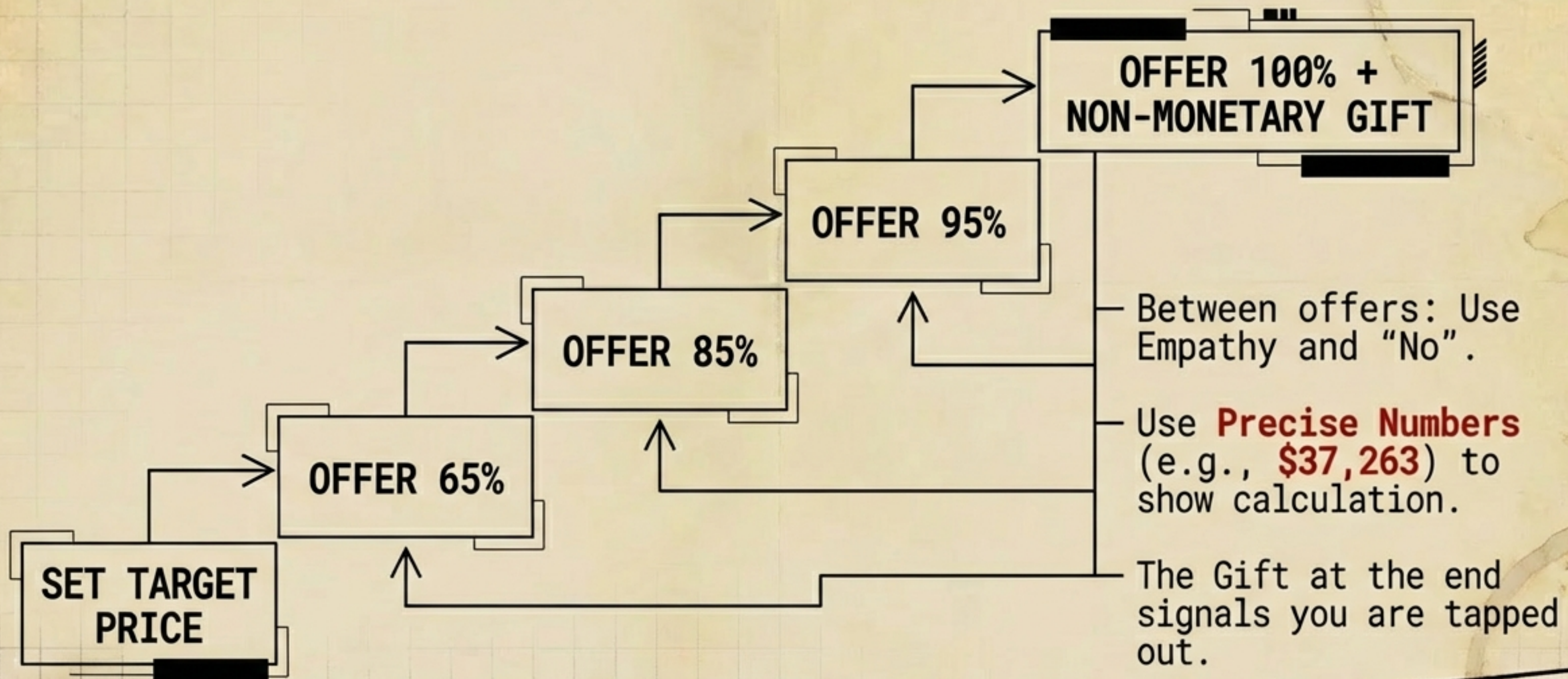
"Hey dog, how do I know she's alright?"

RESULT: Kidnapper put her on the phone.

ANALYSIS: Gave the kidnapper the illusion of control, but forced him to do exactly what was needed. [REDACTED]

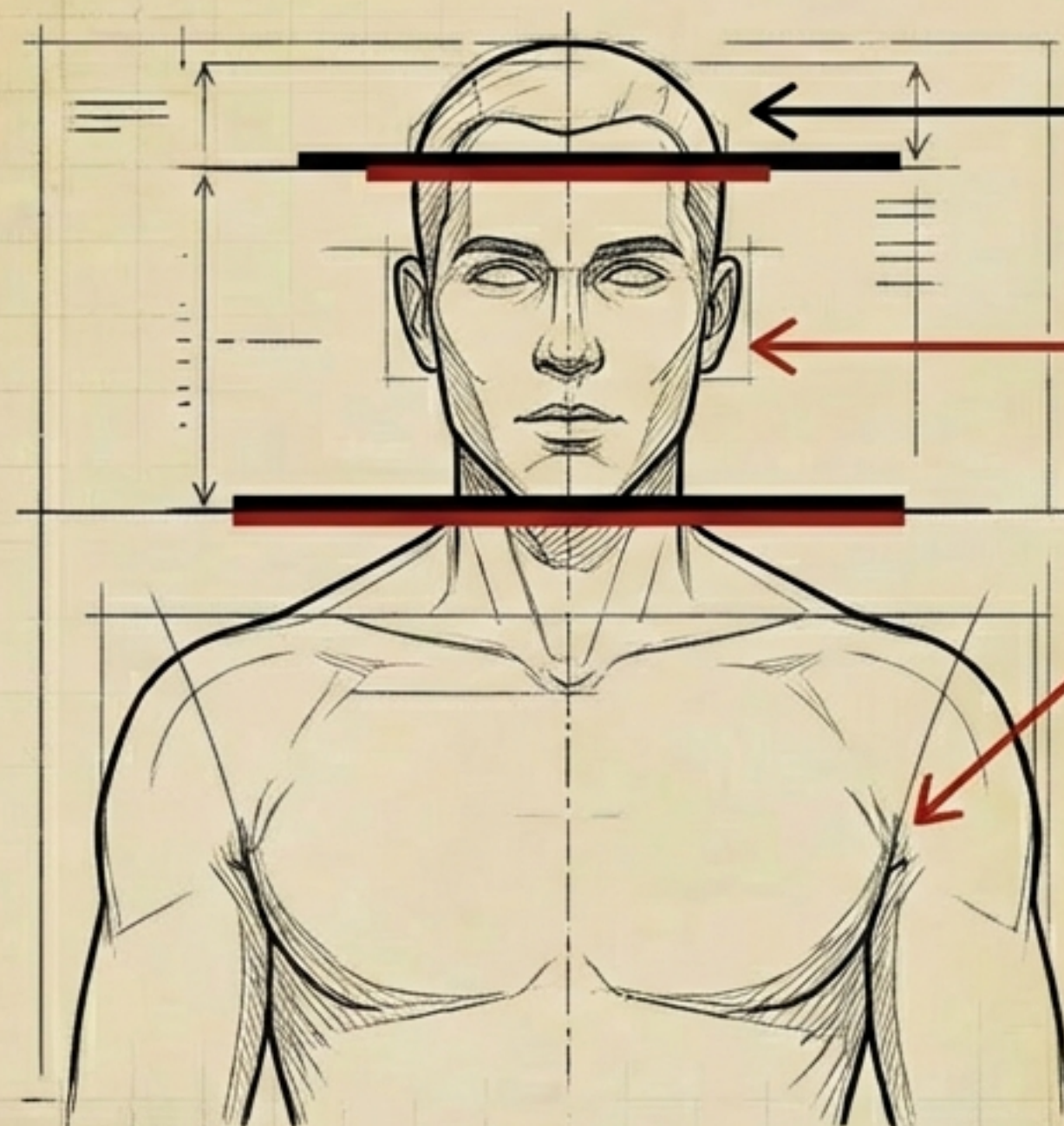
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THE ACKERMAN BARGAINING MODEL



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SPOTTING THE LIAR: 7-38-55 RULE



7%

WORDS

38%

TONE OF VOICE

55%

BODY LANGUAGE

THE PINOCCHIO EFFECT: If words don't match tone/body, they are **lying**.

EXECUTION: The Rule of Three. Get them to agree to the same thing three times in one conversation to ensure a **"Commitment Yes"**.

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THE BLACK SWAN

The Unknown Unknowns.



DEFINITION: Information that sits outside expectations but changes everything.

THEORY: Every negotiation has at least 3 Black Swans.

TACTIC: Let go of assumptions. Use face-to-face interaction to observe unguarded moments.

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CASE FILE: THE TOBACCO FARMER



SITUATION: Farmer with bombs in D.C. Felt cornered.

THE BLACK SWAN: He was a devout Christian.

THE LEVERAGE: FBI used "The Dawn of the Third Day" (Resurrection) to allow him to surrender with honor.

LESSON: **NORMATIVE LEVERAGE.** Use the other party's norms/religion to align them with your goals.

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THE NEGOTIATION ONE-SHEET

- ☒ GOAL: Reveal **Black Swans**.
- ☒ TONE: **Late-Night FM DJ**.
- ☒ ACTIVE LISTENING: **Mirror** (Last 3 words) + **Silence** (4 secs).
- ☐ EMPATHY: **Label emotions** ('It seems like...'). **Accusation Audit**.
- ☐ CONTROL: **Trigger 'No'** for safety. **Aim for 'That's Right'**.
- ☒ REALITY: Use **'How' questions** ('How am I supposed to do that?').
- ☒ BARGAINING: **Ackerman Model** (65% -> 85% -> 95% -> 100%).

"CONFLICT IS AN OPPORTUNITY."